

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 25, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Absent: Rocky Case. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Carol Intlekofer, City Clerk, announced agenda item #26(d) was inadvertently placed on the Consent Agenda and, therefore, should not be included as a Consent Agenda item. Mr. Johnson declared a conflict of interest (personal interest in Consent Agenda item #19) and vacated Council Chambers. Upon request by Mr. Roybal, and pursuant to support received by Mr. Roybal and Mr. White, Agenda Item #20 was removed from the Consent Agenda. Upon request by Mr. White, and pursuant to support received by Mr. Cook and Dr. Rinne, Agenda Item #18 was removed from the Consent Agenda. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers with the exception of Dr. Rinne voting “no”. Following announcement of the vote, Mr. Johnson returned to Council Chambers.

[CA] Minutes from Regular Meeting of the Governing Body on June 11, 2018. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Mayor Orr opened a public hearing to receive comments and input for a transfer of retail liquor license application filed with the City Clerk’s office for Stults Management LLC d/b/a The Office Bar & Eatery, 1600 E. Pershing Boulevard, Cheyenne, Wyoming (License currently held by Robert Moberly d/b/a Bob’s Place, 1600 E. Pershing Boulevard, Cheyenne, Wyoming). There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne for Fiscal Year 2018-2019. Reporting for

Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present. (#4233)

ORDINANCE – 3rd READING – Defining the terms and conditions of employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2018-2019. Mr. White moved to approve on third and final reading, seconded by Mr. Cook. Mr. White moved to amend by substitute dated June 18, 2018, seconded by Mr. Cook. Chief Brian Kozak, Police Department, explained the substitute is due to the recently approved FY2019 budget which changed Exhibit B affiliated with Sergeant salary increases and the Department’s pay for performance plan. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#4234)

ORDINANCE – 3rd READING repealing in its entirety Chapter 12.16, Trees and Shrubs, and creating a new Chapter 12.16, Trees, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming. Mr. White moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Cook voting “no”. (#4235)

ORDINANCE – 2nd READING – Amending various chapters and sections contained within Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming, pertaining to notarization of applicant signatures. Mr. White moved to approve on second reading, seconded by Mr. Luna. Motion carried. Upon inquiry, Carol Intlekofer, City Clerk, explained removing the notarization requirement will not affect the ability to conduct required applicant background checks. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Amending Section 5.12.140, Persons under the age of twenty-one (21) years – Restrictions – Provisions, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of the Code of the City of Cheyenne, Wyoming. Mr. White moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for Lots 1 and 2, Block 1, Simpson Estates, Cheyenne, Wyoming (located at the southwest corner of the intersection of College Drive and Cheyenne Street). Ginger Brown, Coffey Engineering and Surveying, speaking on behalf of the developer, advised the zone change request is for a new express carwash business; stated measures will be taken to avoid vehicle congestion, and indicated the business will be utilizing a water reclamation system. Reporting for Public Services Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. Luna. Upon inquiry, Mayor Orr noted that construction for the business has not yet started. Comment was made concerning drainage and traffic. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR Medium-Density Residential to MUB Mixed-Use Business Emphasis for Lots 1-5, Block 19, North Cheyenne, 2nd Filing, Cheyenne, Wyoming (located at the northwest corner of the intersection of Yellowstone Road and Prairie Hills Drive). Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Upon inquiry, Seth Lloyd, Planning and Development Department, advised phone calls had been received inquiring about the proposed project (residential and commercial development), but no one from the public made comment at the last Public Services Committee meeting. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”.

ORDINANCE – 1st READING – Amending Section 8.40.070, Food Stands or Pushcarts-Mobile Food Trucks-Mobile Food Units-Temporary Parade Vendors-Business License Required-Application, of Chapter 8.40, Food and Food Service Establishments, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming, by creating a new Section 8.40.070(D) exempting lemonade stands operated by minors under the age of eighteen (18) years from the provisions of this section – referred to Finance Committee. (Sponsor – Mr. Case)

ORDINANCE – 1st READING – Creating Section 15.08.031, Building Permit Fees – Exceptions for Incentivization Program, of Chapter 15.08, International Building Code Adopted, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. White)

RESOLUTION – To establish uniform procedures, fees, costs, and charges for inspecting, copying, and producing public records. Mr. White moved to adopt, seconded by Mr. Johnson. Mr. White moved to amend the “Be It Further Resolved” clause by changing the language of the last item, last line under Section 1, Research or compilation services-Fee, to read “Actual staff time if above \$150”, seconded by Mr. Luna. Upon inquiry, Mr. White explained the intent of calculating staff time is to utilize an employee’s hourly salary wage. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson and Mr. Laybourn voting “no”. (#5936)

RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2018 and ending June 30, 2019. Vicki Dugger, Executive Director, Cheyenne Downtown Development Authority, explained an adjustment to the proposed budget has been submitted due to changes in the downtown tree maintenance and parking subsidy programs, and pursuant to discussion at the Finance Committee meeting. Ms. Dugger provided information on development incentives; proposed DDA re-branding; DDA administrative staffing level, and budget items funded through mill levy monies. Discussion included the following topics: Changes to budget items included in a proposed substitute budget; development incentives and re-branding. Upon inquiry by Sylvia Hackl, City Attorney, Ms. Dugger confirmed the parking subsidy line item had been removed from the revenue and expenditure area. Mr. White moved to adopt, seconded by Mr. Roybal. Mr. White moved to

amend by substitute, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. Discussion continued on the budgeted amount for re-branding; downtown infrastructure needs; governing body authority to approve the DDA’s annual budget; current status of any Memorandum of Understanding (MOU) between the City and DDA, and DDA projects involving City departments. Mr. Laybourn moved to postpone the item to July 9, 2018, seconded by Dr. Rinne. Upon inquiry, Ms. Dugger, Alessandra McCoy, Assistant City Attorney, and Robert Briggs, Director of Planning and Development, provided information on past MOU’s and a draft MOU that has been prepared as a work plan. Discussion included DDA funds being spent equitably; comment in support as well as non-support of postponement; DDA strategic plan information provided during FY2019 budget workshops; DDA board members, as well as other boards affiliated with the City, being appointed by the governing body; DDA budget year based on a fiscal year, beginning July 1st, and, if the item is postponed, funds not being distributed from the City Treasurer on that date until the DDA budget is approved. Motion to postpone failed. Voting “yes” – Mr. Laybourn, Dr. Rinne and Mr. Shanor. Voting “no” – Mr. Cook, Mr. Johnson, Mr. Luna, Mr. Roybal, Mr. White and Mayor Orr. Mr. Laybourn moved to amend by striking \$30,000 for re-branding from the DDA budget, seconded by Dr. Rinne. Upon inquiry, Mr. Laybourn advised, in conjunction with his amendment, it was his intent to instead place the amount of \$30,000 in the Depot Plaza summer events budget. Following brief comment, Dr. Rinne withdrew his second to the motion to amend. Comments continued on DDA mill levy funding for certain budget items; re-branding; downtown improvements and infrastructure, and whether the governing body has oversight of DDA funds following adoption of the DDA budget. During discussion, Ms. Dugger provided further information on re-branding plans and Ron Downey, City Treasurer, confirmed the City’s FY2019 includes \$110,00.00 for the downtown tree program to be provided through the City. Mr. White called for the question (to limit debate), seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing present with the exception of Mr. Laybourn voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn and Dr. Rinne voting “no”. (#5937)

[City Clerk note: Due to a prior commitment, Mr. Shanor vacated Council Chambers and was absent for the remainder of the meeting.]

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the Fiscal Year beginning July 1, 2018 and ending June 30, 2019. Motion (per Consent Agenda) carried. (#5938)

RESOLUTION – Supporting the expedient redevelopment of the building located at 1602 Capitol Avenue, Cheyenne, Wyoming, commonly referred to as the historic Hynds Building, and the lot adjacent to and west of the Hynds Building known as The Hole. Mr. White moved to adopt, seconded by Mr. Roybal. Mr. Roybal moved to postpone to July 9, 2018, seconded by Mr. Luna. It was noted postponement would allow time for a development plan on the project to be reviewed by the Planning Commission prior to action on the resolution. Discussion followed and included: Probable changes to the resolution; suggestion that a City Council work session be held on the topic; public/private partnering and re-development of the property. Motion to postpone carried. Voting “yes” – all members of the governing body present.

[CA] RESOLUTION – Approving a First Amendment to Indenture of Trust and certain other documents and matters related to the City of Cheyenne, Wyoming, Refunding Revenue Bonds (St. Mary's School Project) Series 2015. Motion (per Consent Agenda) carried. (#5939)

[CA] RESOLUTION – Authorizing the submission of an application for federal funding through the Transportation Alternatives Program administered by the Wyoming Department of Transportation for the City of Cheyenne for the purpose of the City of Cheyenne and Frontier Days Multi-Use Path Project – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for North Gate Village, a replat of Lots 1-5, Block 19, North Cheyenne, 2nd Filing, Cheyenne, Laramie County, Wyoming (located at the northwest corner of the intersection of Yellowstone Road and Prairie Hills Drive) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] Lease Agreement between the City of Cheyenne, Information Technology Division, and Xerox by Xerox Agent XESI for a high volume production black and white copier. Motion (per Consent Agenda) carried. (#6856)

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for the use of the Cheyenne Civic Center for youth education concerts. Motion (per Consent Agenda) carried (amount not to exceed \$6,500.00). (#6857)

[CA] Temporary Construction Easement Agreement between the City of Cheyenne, Wyoming, and E.J. Harmon a/k/a Joe Harmon, for construction purposes in connection with the construction of the Christensen Road Corridor and Overpass (1% Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$1,058.00). (#6858)

[CA] Professional Services Agreement between the City of Cheyenne and Data Transfer Solutions, LLC, Fort Collins, Colorado, for the Pavement Condition Survey Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$124,820.00). (#6859)

[CA] Purchasing and Services Agreement between the City of Cheyenne, Police Department, and WatchGuard, Inc., Allen, Texas, for in-car and body-worn camera systems, components and peripheral devices and related software and support services. Motion (per Consent Agenda) carried (amount not to exceed \$769,647.00). (#6860)

[CA] Greenway Easement Agreement between the City of Cheyenne and Laramie County School District No. 1 for the purposes of constructing and maintaining a Greenway segment to be known as the Avenues Connector (WYDOT Transportation Alternatives Program grant) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County

Community College and for an area of Laramie County immediately adjacent to the City (Revenue to City) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and United Way of Laramie County to provide Human Service agencies with the final installment of 2011-2014 1% Sales Tax overage money – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Peak Wellness, Alcohol Receiving Center, to provide alcohol and drug detoxification services to individuals – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Cheyenne Housing Authority to provide supportive senior services – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and Paycom, Inc., to outsource employee payroll and provide software for core Human Resource functionality – referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 6305 between the City of Cheyenne and RBC Global Asset Management (U.S.), Inc. to extend the contract term for managing the City's investment portfolio. Motion (per Consent Agenda) carried. (#6305)

Consideration of RFP-16-18 for a contract for furnishing and installing a parking access, permit and revenue control system. Captain Nathan Buseck, Police Department, reviewed the purpose for implementing a new system which will assist with management of the City's two parking structures and East surface lot, and provided information on a validated parking option for businesses; positive community business feedback for the new system; parking fees; system cost, including annual maintenance fees; accountability for users and uniform assessment, and types of permit users and revenue generation. Astrid, owner, Plains Hotel, expressed concerns with expenditure cost for the system vs. benefits; supporting a "fragile downtown", and cost of parking fines and parking rates. Alane West reiterated comments she had made on the topic at the Finance Committee meeting, and suggested employees/property owners be allowed to park on upper levels in the parking structures and re-striping one-way streets to assist with on-street parking. John Dinneen commented in support of the new system, citing recommendations and observations made in the Kimley-Horn downtown parking study, and stated the new system will provide better data and reports for future decisions related to downtown parking strategies. Mr. White moved to approve the proposal submitted by Passport Labs, Inc., Charlotte, North Carolina, in an amount not to exceed \$574,002.58, seconded by Mr. Johnson. Discussion followed in support of the new system and various affiliated features, and the different types of data that will be provided through the system. Motion carried. Voting "yes" – all members of the governing body present. (#6861)

[CA] Consideration of Bid #E-28-18 for furnishing new computers and operating systems for the City of Cheyenne through the Information Technology Division (2015-2018 1% Sales Tax).

Motion (per Consent Agenda) carried (accepted bid from Dell Marketing L.P., Round Rock, Texas, in an amount not to exceed \$37,016.24).

Consideration of Bid #E-29-18 for furnishing 18 police vehicles with equipment installed for the Cheyenne Police Department (2015-2018 1% Sales Tax). Lieutenant Rob Dafoe, Police Department, provided information on the annual bid to replace vehicles, noting the bid includes three new vehicles, and advised it is a “turn key” bid, meaning the bid includes acquisition of vehicles with equipment also installed for better warranty provisions. Upon inquiry, Lt. Dafoe explained the department is working toward a fleet comprised of trucks instead of passenger vehicles, which should have a longer use life. Mr. White advised there was no recommendation on the item from Finance Committee. Mr. Roybal moved to accept the bid submitted by Spradley Barr Motors, Cheyenne, in an amount not to exceed \$797,400.00, seconded by Mr. Johnson. Comments were made that Community Service Officers’ utilization of trucks will assist with response to vehicle collisions (hauling of equipment needed to assist with debris clean-up) and transporting of bicycles, etc. Motion carried. Voting “yes” – all members of the governing body present.

Consideration of Bid #E-26-18 for furnishing one new 2019 cab and chassis, 4x4 with utility body installed for the City of Cheyenne, Traffic Division (2015-2018 1% Sales Tax). Vicki Nemecek, Director of Public Works, explained the bid is for a replacement of a sign installation truck and that three vehicles will be submitted as trade-ins, and discussed vehicle problems with the current truck resulting in costly repairs. Discussion followed on utilizing one of the trucks to be traded-in for Forestry in association with the downtown tree maintenance program. Upon inquiry, Ms. Nemecek explained she had visited with Jason Sanchez, Deputy Director, Community Recreation and Events, who advised the current tower truck is not compatible for Forestry use due to its size and lack of maneuverability in certain downtown areas. Upon inquiry, Mr. Sanchez confirmed the truck only has a single boom and is too large for working in downtown traffic areas. Mr. White moved to accept the bid submitted by Spradley Barr Motors, Cheyenne, in an amount not to exceed \$103,627.00, seconded by Mr. Johnson. Ms. Nemecek offered that purchase of a new truck could be approved without trading-in the 2003 GMC truck. Mr. Roybal moved to remove the 2003 GMC truck as a trade-in, seconded by Mr. Luna. Comment was made that if the 2003 GMC could not be utilized by Forestry it could be used as a trade-in for the new Forestry truck for the downtown tree maintenance program. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn and Dr. Rinne voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present.

Following a brief recess, Mayor Orr reconvened the meeting at 8:24 p.m.

[CA] Consideration of Bid #E-25-18 for furnishing new refuse vehicles for the City of Cheyenne, Sanitation Division (Solid Waste Management fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-30-18 for furnishing one new 2019 77-passenger bus for the City of Cheyenne, Latchkey Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-15-18 for a contract between the City of Cheyenne, Public Works Department, and Containment Systems, LLC, Birmingham, Alabama, for the City of Cheyenne Landfill Permanent Litter Fence Project (Solid Waste Management fund) – referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's office for Mancuso's LLC d/b/a Esther's, 2114 Warren Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Appointment of Daniel Holbrook to the Downtown Development Authority Board. Mr. Roybal moved to approve, seconded by Mr. White. During inquiry on Board member composition (per City Code), Chuck West advised Mr. Holbrook is a commercial property appraiser, who doesn't own property in the DDA District, and that the majority balance of Board members leasing or owning property in the downtown district will be maintained. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointee).

Reappointments of Scott Cowley and Dema Jo Gilbert to the Cheyenne/Laramie County Economic Development Joint Powers Board, and Allison Anderson, Richard Berry and Ronn Jeffrey to the Laramie County Juvenile Services Joint Powers Board. Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointees).

Announcement was made of a Public Hearing to be held Monday, July 9, 2018 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk's office for The Ridge Restaurant LLC d/b/a The Ridge Restaurant, 1820 Ridge Road, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held Monday, July 9, 2018 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comments on a proposed trade of a portion of real property owned by the City of Cheyenne at 2303 Westland Road, for a portion of real property owned by Roger E. Gill and Alec Yurgilevich at 2305 Westland Road, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held Monday, July 9, 2018 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comment and input on the "Development Plan for the Hynds/Hole (H2) Project" as proposed by the Cheyenne Downtown Development Authority.

Under other business:

Jeff Dierksen questioned stormwater run-off drainage issues for some county residents allegedly due to a private residential development project within the City and whether the City would be addressing the situation. Mayor Orr advised communication is planned with the County Engineer, and a City-County Joint Stormwater Drainage Committee may be formed to discuss issues generally involving stormwater drainage. Mr. Dierksen also commented on lead water pipes

still in use by the Board of Public Utilities, and trash and debris along the Greenway path, suggesting a Keep Cheyenne Beautiful campaign be implemented. Information in response was provided on BOPU water testing requirements, Greenway clean-up future plans, and trash containment requirements and pick-up services provided by Sanitation staff. During comments on lead water pipes, Mark Court provided information regarding ph water levels.

Mark Court expressed concerns with recreational vehicles parked on residential streets and affiliated safety issues. Frank Cole stated that certain neighborhoods have property covenants in place that prohibit RV parking in certain places; commented on oversized vehicles, trailers, etc. obstructing traffic signs, and suggested these types of vehicles and equipment not be allowed to be parked on streets.

Mr. White congratulated City staff and volunteers for the great SuperDay event held during the past weekend.

Mr. Johnson commented on various topics, including the recent U.S. Supreme Court opinion involving non-discrimination; advised of an upcoming Depot Plaza splash pad fundraising event, and expressed concern with a hedge blocking an intersection line-of-sight.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:59 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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